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Case Number: 25STCV31715 Hearing Date: July 20, 2026 Dept: 529

arthur odell johnson v. general motors llc

Motion for attorney fees

Date of Hearing: 7/20/26 Trial Date:

Department: 529 Case No.: 25STCV31715

Moving Party: Plaintiff Arthur Odell Johnson

Responding Party: Defendant General Motors LLC

BACKGROUND

This is a lemon law case. On or about January 23, 2025, Plaintiff Arthur Odell Johnson ("Plaintiff") purchased a new 2025 Chevrolet Truck Equinox ("Vehicle") from Chevrolet of Montebello. (Compl., ¶ 6.) Defendant General Motors LLC ("Defendant") designs, manufactures, constructs, assembles, markets, distributes, warrants, and sells motor vehicles and components. (Id. at ¶ 3.) At the time the Vehicle was delivered to Plaintiff, the Vehicle had not been in a merchantable condition, was not safe, and did not conform to the quality and safety guidelines. (Id. at ¶ 10.) The defects impacted the Vehicle's use, value, and/or safety. (Id. at ¶ 15.)

On October 31, 2025, Plaintiff filed a Complaint alleging (1) breach of implied warranty; (2) breach of express warranty; (3) violation of the Song Beverly Consumer Warranty Act; and (4) Violation of California Civil Code Section 1793.2(b).

On June 25, 2026, Plaintiff filed this Motion for Attorney Fees, Costs, and Expenses ("Motion"). On July 7, 2026, Defendant filed an opposition. On July 13, 2026, Plaintiff filed a reply.

[Tentative] Ruling

Plaintiff's Motion for Attorney's Fees and Costs is granted in the reduced amount of \$16,543.56, consisting of \$15,175 in attorney fees and \$1,368.56 in costs.

ANALYSIS

Pursuant to Civil Code section 1794, Plaintiff moves for an award of attorney fees and costs in his favor and against Defendant in the amount of \$20,433.56, including \$19,065.00 in attorney fees and \$1,368.56 in costs.

Legal Standard

"Any buyer of consumer goods who is damaged by a failure to comply with any obligation under this chapter or under an implied or express warranty or service contract may bring an action for the recovery of damages and other legal and equitable relief." (Civ. Code § 1794, subd. (a).)

"If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code § 1794, subd. (d).)

Entitlement to Attorney Fees

Defendant does not dispute the issue of entitlement to fees. It is undisputed, then, that Plaintiff is the prevailing party and, as such, is entitled to an award of attorney fees pursuant to Civil Code section 1794, subdivision (d) and the parties' settlement.

Reasonableness of Fees

The Court turns to the issue of reasonableness of the fees sought. "[T]rial courts have broad discretion in determining the amount of a reasonable attorney's fee award. This determination is necessarily ad hoc and must be resolved on the particular circumstances of each case." (Meister v. Regents of University of California (1998) 67 Cal.App.4th 437, 452.) "Trial judges are entrusted with this discretionary determination because they are in the best position to assess the value of the professional services rendered in their courts." (Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1321.)

"[O]nce a party has established he or she is entitled to fees, the lodestar method is generally presumed to be the starting point in analyzing the appropriate amount of attorney fees. Under this method, a court first calculates the number of hours reasonably spent multiplied by the reasonable hourly rate for each billing professional, and then may adjust the amount based on various relevant factors to ensure the fee reflects the fair market value [of the attorney services] for the particular action. (K.I. v. Wagner (2014) 225 Cal.App.4th 1412, 1425 [quotations and citations omitted].)

Reasonableness of Hourly Rates

"In determining hourly rates, the court must look to the prevailing market rates in the relevant community. The rates of comparable attorneys in the forum district are usually used. In making its calculation, the court should also consider the experience, skill, and reputation of the attorney requesting fees. The court may rely on its own knowledge and familiarity with the legal market in setting a reasonable hourly rate." (Heritage Pacific Financial, LLC v. Monroy (2013) 215 Cal.App.4th 972, 1009 [internal quotations and citations omitted].)

The hourly rates in this matter are set forth as follows:

Attorney Bryan M. Geoulla ("Geoulla"), founding partner— \$450 per hour

Attorney Michael Josephson ("Josephson"), associate— \$350 per hour

Defendant does not challenge the reasonableness of the hourly rates. Moreover, the Court finds the rates to be reasonable. Geoulla is a founding partner, licensed in 2022, and has represented over 1,000 consumers in lemon law cases. (Geoulla Decl. ¶¶ 14-25.) Josephson was licensed in May 2025 and has conducted nearly 120 lemon law settlements. (Josephson Decl. ¶¶ 9-15.) Accordingly, the hourly rates are reasonable.

Reasonableness of Time Incurred

"[T]he verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous." (Horsford v. Board of Trustees of California State University (2005) 132 Cal.App.4th 359, 396.) "In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn. (2008) 163 Cal.App.4th 550, 564.)

That said, "[a] fee request that appears unreasonably inflated is a special circumstance permitting the trial court to reduce the award or deny one altogether." (Serrano v. Unruh (1982) 36 Cal.3d 621, 635). The court may "make across-the-board percentage cuts either in the number of hours claimed or in the final lodestar figure" in consumer law cases "when a voluminous fee application is made." (Warren

v. Kia Motors America, Inc. (2018) 30 Cal.App.5th 24, 41 [quotations and citation omitted].)

Here, Plaintiff's counsel contends to have expended 44.7 hours on the matter. Plaintiff contends that an additional 2.8 hours are anticipated to review any opposition, draft a reply, and prepare for and attend the hearing on this motion. Plaintiff alleges that Geoulla worked 21.6 hours at a rate of \$450 per hour and Josephson worked 23.1 hours at a rate of \$350 per hour. Plaintiff attaches the billing invoices for this matter to Geoulla's Declaration. (Geoulla Decl., ¶ 54, Ex. 2.)

Defendant contests the hours expended. Defendant argues that counsel's alleged hours do not support the time billed as actually or reasonably incurred. Specifically, Defendant objects to: (1) Excessive Time on Client Intake and Pre-Litigation Tasks—October 21-29, 2025; (2) Excessive Time Reviewing GM's Standard Answer—December 3, 2025; (3) Preparing Initial Disclosures—December 18, 2025; January 19, 30, 2026; (4) Excessive Time Reviewing GM's Document Production—February 3, 2026; (5) Excessive Time Spent on Tasks Related to Plaintiff's Deposition—February 27-March 2, 2026; (6) Excessive Time Spent on Tasks Related to GM's PMK Deposition—March 21-25, 2026; (7) Redundant & Excessive Client Communications—Throughout; (8) Administrative/Clerical Time & Internal Communications—Throughout; (9) Vehicle Surrender—May 11-13, 28, June 15, 18, 24, 2026; and (10) Anticipated Time. Defendant claims that the inflated hours should be denied or reduced to \$9,635.00 based on 24.6 hours identified as unreasonable.

In reply, Plaintiff contends that Defendant misstates the actual billing record. Additionally, Plaintiff argues that intake work was necessary legal work, that analyzing the Answer was strategic work, that preparing disclosures was discovery-equivalent work, that document production review was necessary, that work for the depositions was reasonable and non-duplicative, that Plaintiff was entitled to discovery prior to accepting the 988 offer, that client communications were necessary, that the label as clerical work was incorrect, and the anticipated fee was reasonable.

Reviewing the firm's billings, the Court finds several of the billings to be unreasonable and to be reduced. First, the Court agrees with Defendant that 3.3 hours on initial intake and pre-litigation tasks prior to taking Plaintiff as a client is unreasonable. The Court therefore reduces the time spent on reviewing repair orders, drafting internal repair orders, reviewing online forums, and explaining the retainer agreement to reflect 2.3 hours, a reduction of one hour at \$450.00 per

hour.

Next, Defendant contends that the 0.9 hours spent drafting notes and strategy to the Answer should be reduced because Defendant uses a standard answer that should not take long to review. (Kay Decl., ¶ 5.) Given Geoulla's experience with lemon law cases, the Court agrees that 0.9 hours is unreasonable and excessive. The Court reduces the hours to 0.4 hours for reviewing the Answer and drafting strategy. Thus, the Court reduces the hours by 0.5 hours at a rate of \$450.00 per hour.

Next, Josephson billed 1.5 hours to draft initial disclosures that were 5 pages long and resembled previous disclosures. (Kay Decl., ¶ 9, Ex. A-B.) The Court reduces to 1 hour for drafting the initial disclosures, for a reduction of 0.5 hours at a rate of \$350.00 per hour. Additionally, Josephson billed 3.4 hours to review document production from Defendant and write internal memorandum summarizing the document production. (Geoulla Decl., Ex. 2.) The Court finds this to be an unreasonable amount of time given the similarity of information contained in the documents such as warranty and repair information and reduces the time by 0.5 hours at a rate of \$350.00 per hour.

Next, the Court reduces the hours spent on billing for the deposition. Given that the deposition only lasted 1.4 hours, the Court finds it unreasonable to have spent five hours prepping and debriefing the deposition. The Court reduces deposition preparation from 1.7 hours to 1 hour and drafting internal memo from 1 hour to 0.4 hours for a total reduction of 1.4 hours at a rate of \$350.00 per hour. Similarly, the Court reduces the amount of time spent to prepare for the 2.40 hour PMK Deposition from 4.9 hours to 3 hours, for a reduction of 1.9 hours at a rate of \$350 per hour.

Additionally, the Court agrees to remove clerical and administrative costs such as checking the docket, reviewing notices, which was noted to take .3 hours at \$450 per hour and 1.7 hours at \$450 per hour, for a total reduction of 2 hours at a rate of \$450 per hour.

Finally, the Court agrees to reduce the time anticipated to be spent reviewing this opposition, drafting a reply, and attending the hearing from a speculative 2.8 hours to 1 hour at a rate of \$450.

Accordingly, the Court will reduce the hours by 8.1 hours and by \$3,890.

Costs

Allowable costs "shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." (Code Civ. Proc., § 1033.5, subd. (c)(2).) Any items not specifically mentioned by statute "may be allowed or denied in the court's discretion." (Id., subd. (c)(4).) The Beverly-Song Act allows a successful plaintiff to recover both "costs" and "expenses." (See Civ. Code, § 1794, subd. (d).)

"If the items appear to be proper charges the verified memorandum is prima facie evidence that the costs, expenses and services therein listed were necessarily incurred by the defendant [citations], and the burden of showing that an item is not properly chargeable or is unreasonable is upon the [objecting party]." [Citation.]" (Nelson v. Anderson (1999) 72 Cal.App.4th 111, 131.)

Plaintiff requests a total of \$1,368.56 in costs. In opposition, Defendant challenges the cost for "Other" for \$66.31 for failing to provide a description and lumping claims together without itemization. Defendant contends that the Court can and should disallow or tax cost items that are not recoverable by statute or were not reasonably necessary to litigate this case.

In reply, Plaintiff argues that the costs are fixed because Defendant never filed a motion to tax them within 15 days of the service of the cost memorandum. Having allowed the deadline to pass, Defendant waived any challenge to the costs. Also, Plaintiff argues that the \$66.31 is not vague and is demonstrated in the invoices.

"A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first. The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case." (Cal. Rules of Court, Rule 3.1700, subd. (a)(1).) If the cost memorandum was served electronically, the period is extended as provided in Code of Civil Procedure section 1010.6(a)(3). (Id. at 3.1700, subd. (b)(1).) In the absence of an agreement between the party claiming costs and the party contesting costs, the court may extend the times for serving and filing the cost memorandum or the notice of motion to strike or tax costs for a period not to exceed 30 days. (Id. at Rule 3.1700, subd. (3).) After the time has passed for a motion to strike or tax costs or for determination of that motion, the clerk must immediately enter the costs on the judgment. (Id. at Rule 3.1700, subd. (4).)

Here, the Memorandum of Costs was served and filed on June 25, 2026. 15 days from June 25th is June 10th, plus two court days for electronic service would be July 14th. As no motion to tax costs has been filed, Defendant has waived the argument to object to costs. Consequently, the full \$1,368.56 in costs must be awarded.

CONCLUSION

Plaintiff's Motion for Attorney's Fees and Costs is granted in the reduced amount of \$16,543.56, consisting of \$15,175 in attorney fees and \$1,368.56 in costs.